



CHAPTER ccxxi.

An Act for incorporating and conferring powers on the
Fife Electric Power Company. [11th August 1903.]

A.D. 1903.

WHEREAS the providing of central electrical generating stations and the erection of such buildings and works as are hereinafter mentioned for the production transformation storage and distribution of electricity within the area of supply hereinafter defined would be of public and local advantage :

And whereas the persons in this Act named with others are willing at their own expense to construct the electrical generating stations and buildings and it is expedient that they be incorporated into a Company (in this Act called “the Company”) and that powers should be conferred on them for the purpose and for acquiring certain lands for such generating stations buildings and works and generally for carrying out the objects and provisions of this Act :

And whereas a plan showing the lands which may be taken compulsorily under the powers of this Act with a book of reference to the plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the principal sheriff clerk of the county of Fife and are hereinafter respectively referred to as the deposited plan and book of reference :

And whereas it is expedient that the Company be empowered to make charges for the supply of electricity and to raise capital and borrow money for the purposes of this Act :

And whereas it is expedient that powers should be conferred upon the Company to make contracts and agreements with local authorities and others for the supply of electrical energy in bulk or otherwise and with railway companies for the acquisition of

A.D. 1903. easements for the placing of mains cables tubes pipes posts and wires along or adjacent to their lines of railway as hereinafter provided :

And whereas the aforesaid objects cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Fife Electric Power Act 1903.

Application of Electric Lighting Acts and incorporated Acts.

2. The provisions of the Electric Lighting Act 1888 and the Schedule to the Electric Lighting (Clauses) Act 1899 which are contained in the sections thereof hereinafter mentioned shall not apply to the Company or their undertaking anything in any of the said Acts to the contrary notwithstanding (that is to say) :—

Sections 2 and 3 of the Act of 1888 and sections 2 3 5 7 8 9 21 to 29 30 (so far as respects supply in bulk) 31 to 35 64 to 68 75 78 and 84 of the Schedule to the Act of 1899 :

But except as aforesaid the provisions of the said Act of 1888 and the said Schedule are incorporated with and form part of this Act.

The provisions of section 14 of the Schedule to the Electric Lighting (Clauses) Act 1899 shall extend and apply to the laying down and placing of any cables or other works in through under along or across the bed and foreshore of any river.

Incorporation of general Acts.

3. The Lands Clauses Acts and the Companies Clauses Consolidation (Scotland) Act 1845 Part I. (Cancellation and surrender of shares) and Part III. (Debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts are subject to the provisions of this Act incorporated with and form part of this Act.

Interpretation.

4. In this Act unless the context otherwise requires—

The several words terms and expressions to which by the Acts wholly or partially incorporated herewith meanings are assigned shall have the same respective meanings unless there be something to the contrary contained therein :

The expression “the undertaking” means the undertaking by this Act authorised : A.D. 1903.

The expression “the Company” means the Company incorporated by this Act who shall for the purposes of this Act be the undertakers within the meaning of the Electric Lighting Act 1882 and the Electric Lighting (Clauses) Act 1899 :

The expression “authorised distributor” means any local authority company body or person authorised by Act of Parliament or Provisional Order confirmed by Parliament or licence to give a general supply of energy within the area of supply or any part thereof :

The expressions “the county authority” “the county council” and “the local authority” mean and shall include the county council and the district committees of such county council having jurisdiction within the county of Fife.

5. The domicile of the Company with reference to all judicial proceedings or actions at law shall be and be deemed to be in Edinburgh. Domicile of Company.

6. Sir Ralph W. Anstruther Sir James Sivewright David Russell Robert Russell Arthur Sanderson James Pringle James A. Hood William Robertson John Alexander Dewar Walter Stowe Bright McLaren and all other persons who have already subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assignees respectively shall be and are hereby united into a Company for the purpose of making and maintaining central generating stations and for the other purposes of this Act and for those purposes shall be and are hereby incorporated by the name of “The Fife Electric Power Company” and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act. Company incorporated.

7. Subject to the provisions of this Act the Company may acquire lease hire construct maintain use enlarge alter or discontinue the use of and may sell let or otherwise dispose of lands buildings machinery plant and apparatus for the production generation storage regulation transformation measurement and supply of electrical energy and may also sell let or otherwise dispose of all such lands buildings machinery appliances and other property. General powers of Company.

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LANDS &c.

Lands for
generating
stations.

8. The Company may subject to the provisions of this Act enter upon take hold and use the lands in the county of Fife described in the First Schedule to this Act shown on the deposited plan and described in the deposited book of reference or any part or parts thereof and may use those lands or any portion thereof for the erection and establishment of stations for generating electrical energy with all necessary and convenient buildings engines dynamos apparatus and conveniences connected with such stations:

Provided that nothing contained in this Act shall entitle the Company to take or acquire that portion of the Leven site described in the said schedule belonging to the North British Railway Company but the Company shall be entitled to acquire a wayleave through that portion for a pipe to convey a water supply from the burn or aqueduct on the north of that portion to any other portion of the Leven site acquired by the Company.

Power to
deviate.

9. The Company may in constructing the works by this Act authorised deviate laterally from the lines thereof to the extent of the limits of deviation shown thereon not exceeding ten feet.

Correction of
errors &c. in
deposited
plan and
book of
reference.

10. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff of the county in which such lands are situate for the correction thereof and if it appear to the sheriff that the omission misstatement or wrong description arose from mistake he shall certify the same accordingly and shall in his certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the principal sheriff clerk for the said county and a duplicate thereof shall also be deposited with the town clerk or clerk to the commissioners of any burgh or with the clerk of the parish council of any parish outside a burgh in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plan and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

11. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act.

Period for compulsory purchase of lands.

12. Subject to the provisions of this Act the Company may manufacture acquire maintain and use and sell let on hire and otherwise dispose of electric and other mains storage and other batteries dynamos accumulators cables conductors services wires tubes pipes insulators meters reservoirs distributing cut-out and other boxes switches transformers lamps fittings motors and other apparatus for transmitting storing measuring regulating and distributing electrical energy for lighting and other purposes public and private or for converting the same into motive power heat or otherwise and may (by agreement) lay down and use pipes conduits and other channels of water supply for feeding or condensing purposes or other purposes connected with the undertaking of the Company.

Storage and distributing works.

13. The Company may for the general purposes of their undertaking purchase and hold or take on lease (by agreement but not otherwise) in addition to the lands delineated on the deposited plan and described in the deposited book of reference any lands and hereditaments not exceeding in the whole sixty acres which the Company may from time to time require for the aforesaid purposes but the Company shall not be exonerated from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands acquired under this section.

Power to purchase lands by agreement.

14. The Company may acquire by agreement servitudes for the placing of mains cables posts and wires over and under lands and property belonging to any company body or person and may make agreements with any companies bodies and persons for the supply of electricity by or to the Company.

Easements over lands and property.

15. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for any of the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Power to owners to grant servitudes &c.

16.—(1) The Company shall not under the powers of this Act purchase or acquire in any district for the purposes of the Public

Restriction on taking houses of

A.D. 1903. **Health (Scotland) Act 1897** ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

CAPITAL.

Capital. **17.** The capital of the Company shall be six hundred thousand pounds in sixty thousand shares of ten pounds each.

Shares not to be issued until one fifth paid. **18.** The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share is paid in respect thereof.

Calls. **19.** One fifth of the amount of a share shall be the greatest amount of a call and three months at least shall be the interval between successive calls and three fifths of the amount of a share shall be the utmost aggregate amount of the calls made in any year upon any share.

Receipt in case of persons not sui juris. **20.** If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of his tutor or curator or curator bonis or of the guardian or committee of his estate shall be a sufficient discharge to the Company.

21. Subject to the provisions of this Act the Company with the authority of three fourths of the votes of the shareholders present in person or by proxy at a general meeting of the Company specially convened for the purpose may divide any shares in their capital into half shares of which one shall be called " preferred half share " and the other shall be called " deferred half share " but the Company shall not divide any share under the authority of this Act unless and until not less than sixty per centum upon such share has been paid up and upon every such division fifty per centum upon the entire share shall be carried to the credit of the deferred half share (being the whole amount payable thereon) and the residue to the credit of the preferred half share.

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Power to
divide shares.

22. The dividend which would be payable on any divided share if the same had continued an entire share shall be applied in payment of dividends on the two half shares in manner following (that is to say) First in payment of dividend after such rate not exceeding six pounds per centum per annum as shall be determined once for all at a general meeting of the Company specially convened for the purpose on the amount for the time being paid up on the preferred half share and the remainder (if any) in payment of dividend on the deferred half share and the Company shall not pay any greater amount of dividend on the two half shares than would have from time to time been payable on the entire share if the same had not been divided.

Dividends on
half shares.

23. Each preferred half share shall be entitled out of the profits of each year to the dividend which may have been attached to it by the Company as aforesaid in priority to the deferred half share bearing the same number but if in any year ending the thirty-first day of December there shall not be profits available for the payment of the full amount of dividend on any preferred half share for that year no part of the deficiency shall be made good out of the profits of any subsequent year or out of any other funds of the Company.

Dividend on
preferred
shares to be
paid out of
profits of
year only.

24. Forthwith after the creation of any half shares the same shall be registered by the directors and each half share shall bear the same number as the number of the entire share certificate in respect of which it was issued and the directors shall issue certificates of the half shares accordingly and shall cause an entry to be made in the register of the entire shares of the conversion thereof but the directors shall not be bound to issue a certificate of any half share until the certificate of the existing entire share be delivered to them to be cancelled unless it be shown to their satisfaction that

Half shares
to be regis-
tered and
certificates
issued.

A.D. 1903. — such certificate is destroyed or lost and on any certificate being so delivered up the directors shall cancel it.

Terms of
issue to be
stated on
certificates.

25. The terms and conditions on which any preferred half share or deferred half share created under this Act is issued shall be stated on the certificate of each such half share.

Forfeiture of
preferred
shares.

26. The provisions of the Companies Clauses Consolidation (Scotland) Act 1845 with respect to the forfeiture of shares for non-payment of calls shall apply to all preferred half shares created under the authority of this Act and every such preferred half share shall for that purpose be considered an entire share distinct from the corresponding deferred half share and until any forfeited preferred half share shall be sold by the directors all dividends which would be payable thereon if the same had not been forfeited shall be applied in or towards payment of any expenses attending the declaration of forfeiture thereof and of the arrears of calls for the time being due thereon with interest.

Preferred
shares not to be
cancelled or
surrendered.

27. No preferred half share created under the authority of this Act shall be cancelled or be surrendered to the Company.

Half shares
to be half
shares in
capital.

28. The several half shares under this Act shall be half shares in the capital of the Company and every two half shares (whether preferred or deferred or one of each) held by the same person shall confer such right of voting at meetings of the Company and (subject to the provisions hereinbefore contained) shall confer and have all such other rights qualifications privileges liabilities and incidents as attach and are incident to an entire share.

Portion of
capital to be
subscribed
before com-
pulsory
powers put
in force.

29. When any sum not less than seventy-five thousand pounds part of the capital or estimated sum for defraying the expenses of the undertaking shall have been subscribed under contract binding the parties thereto their heirs executors and administrators for the payment of the several sums in such portion of capital by them respectively subscribed it shall be lawful for the Company to put in force the powers of this Act in relation to the compulsory taking of land for the purposes of the generating station or stations by this Act authorised and such sum shall be deemed to be the prescribed sum for the purposes of section 16 of the Lands Clauses Consolidation (Scotland) Act 1845.

Certificate of
Board of
Trade that
portion of
capital has
been sub-
scribed.

30. A statutory declaration by two of the directors and the secretary of the Company deposited with the Board of Trade certifying that the said sum of seventy-five thousand pounds has been subscribed as aforesaid shall be sufficient evidence thereof and on the application of the Company and the production of such

evidence as the Board of Trade shall think proper and sufficient they shall grant a certificate accordingly. A.D. 1903.

31. The Company may borrow on debenture or on mortgage of their undertaking any sum or sums not exceeding in the whole one-third part of the amount of the share capital of the Company at the time actually issued and accepted but no part of any such sum or sums shall be borrowed until the shares in respect of which the borrowing power is exercised are issued and accepted as aforesaid and one half thereof is paid up and the Company shall have proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that such shares have been issued and accepted and that one half thereof has been paid up and that not less than one fifth part of the amount of each separate share so issued and accepted has been paid on account thereof before or at the time of the issue or acceptance thereof and upon production to such sheriff of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. As to borrowing power of Company.

32. The mortgagees or debenture holders of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages or debentures by the appointment of a judicial factor In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees or debenture holders by whom the application for a judicial factor is made shall not be less than ten thousand pounds in the whole. For appointment of a judicial factor.

33. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this Act or any subsequent Order or Act shall subject to the provisions of any subsequent Order or Act rank *pari passu* (without respect to the dates of the securities or of the Orders or Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock. Debenture stock.

34. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable. Application of moneys.

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APPOINTMENT OF DIRECTORS AND MEETINGS.

First ordinary meeting.

35. The first ordinary meeting of the Company shall be held within six months after the passing of this Act.

Number of directors.

36. The number of directors shall be seven but the Company may vary the number provided that the number be not at any time less than four nor more than seven.

Qualification of directors.

37. The qualification of a director shall be the possession in his own right of not less than one hundred shares.

Quorum.

38. The quorum of a meeting of directors shall be three.

First directors.

39. Robert Russell James A. Hood Walter Stowe Bright McLaren Robert Emery Walker and three other duly qualified persons to be nominated by them or the majority of them and consenting to such nomination shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act (or nominated as aforesaid) or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act (or nominated as aforesaid) being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation (Scotland) Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

SUPPLY.

Area of supply.

40. Subject to the provisions of this Act the area of supply shall be the whole of the county of Fife.

Conditions affecting supply.

41. The powers of the Company for the supply of energy under this Act shall be subject to the following provisions:—

(1) Energy shall be supplied under this Act only—

(A) For supply in bulk to authorised distributors; and

(B) For providing power to any person:

- (2) The energy supplied to authorised distributors may be used by them for lighting or other purposes and the energy supplied to any person for power may be used by such person for lighting any premises on any part of which the power is utilised but save as aforesaid the Company shall not supply energy for lighting purposes :
- (3) Energy shall not be supplied under this Act by the Company in any area being at the passing of this Act the area of supply of any authorised distributors except with the consent of those distributors but that consent shall not be unreasonably withheld. If any question arises whether that consent is unreasonably withheld that question shall be determined by the Board of Trade. The consent shall be deemed to be unreasonably withheld if the authorised distributors are not willing or are not in a position to give the requisite supply upon reasonable terms and within a reasonable time and in considering what are reasonable terms and what is a reasonable time the Board of Trade shall amongst other things have regard to the terms upon which and the time within which the Company are willing and in a position to give the supply :
- (4) If at any time after the passing of this Act any local authority company or person become authorised distributors in any area within the area of supply under this Act the Company shall be subject to any provisions which may be made by the Act or Provisional Order under which the distributors become authorised as to the taking over of any supply then given by the Company for use exclusively within the area of supply of the distributors or otherwise as to the powers of the Company to supply within that area and such provisions may be made in any such Provisional Order under the Electric Lighting Acts 1882 and 1888 :
- (5) In the event of the local authority of the burgh of Buckhaven Methil and Innerleven becoming authorised distributors within three years after the commencement of this Act they shall for the purposes of this Act be deemed to have been authorised distributors at the commencement of this Act.

42. If any county authority not being an authorised distributor within the meaning of this Act requires from the Company a supply of energy for purposes of public lighting or for other purposes which are or may be within the scope of their statutory powers for the time being the Company shall be bound to afford such supply

Company to supply electricity to county authorities.

A.D. 1903. — as if such county authority were an authorised distributor within the meaning of this Act and this section and the sections of this Act of which the marginal notes are (1) “Conditions affecting supply” (2) “Company to furnish supply of energy in bulk to distributors within area of supply” (3) “Penalty for failure to supply in bulk” and (4) “Notice of discontinuance of supply” shall apply and have effect with reference to any such county authority. If any such county authority shall require a supply of energy other than in bulk for any of the purposes aforesaid the Company shall be bound to afford such supply at such place or places within their jurisdiction as the county authority may require upon the conditions set forth in the section of this Act of which the marginal note is “Arbitration as regards supply” (but on not less favourable conditions than those enjoyed by any other consumer for similar purposes and in the like circumstances) and that section and the section of this Act of which the marginal note is “Notice of discontinuance of supply” shall apply to such supply. The prices to be charged by the Company for energy supplied by them to any such county authority shall not exceed those respectively stated in that behalf in the Second Schedule to this Act annexed but nothing in this section or in the Acts incorporated herewith shall prevent the Company from making any agreement with any county authority.

As to appli-
cation for
Provisional
Orders.

43. Nothing contained in this Act shall prevent the Company from applying and the Company may apply for Provisional Orders under the Electric Lighting Acts 1882 and 1888.

Company to
furnish sup-
ply of energy
in bulk to
distributors
within area
of supply.

44. The Company shall upon being required to do so by any authorised distributor give and continue to give to that distributor at such point or points within the area of supply of such distributor as he may reasonably require a supply of energy in bulk at a price not exceeding the prices stated in the Second Schedule to this Act and they shall furnish and lay such electric lines as may be necessary for the purpose of supplying to such distributor at such point or points the maximum power with which such distributor may be entitled to be supplied under this Act subject to the conditions following (that is to say):—

Every such distributor requiring a supply of energy in bulk shall—

Serve a notice upon the Company specifying the point at which such supply is required to be given and the maximum power required to be supplied and the day upon which such supply is required to commence (not

being an earlier day than a reasonable time after the date of the service of such notice having regard to the situation of the district and to the length of electric line required to be laid and plant required to be erected for affording such supply); and

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Enter into a written contract with the Company (if required by them so to do) to continue to receive and pay for a supply of energy for a period of at least seven years of such an amount that the payment to be made for the same shall not be less than twenty pounds per centum per annum on the outlay (excluding expenditure on generating plant then existing and any electric line then laid) incurred by the Company in making provision for such supply:

The Company may charge for a supply of energy to such distributor either by the actual amount of energy so supplied or by the electrical quantity contained in the supply or by such other method as may be agreed between the Company and such distributor.

If any difference arises under this section such difference shall be determined by arbitration in terms of the section of this Act whereof the marginal note is "Arbitration as regards supply."

45. Notwithstanding the provisions hereinbefore contained the Company shall give a supply of energy in bulk to any authorised distributor who may require to take a portion only of the energy required by such authorised distributors for a part of or the whole area comprised in their undertaking upon such authorised distributors entering into a binding agreement to take such energy upon such terms as failing agreement may be fixed by arbitration and in fixing such terms (including a minimum annual sum to be paid to the Company) the arbiter shall have regard to the following amongst other considerations:—

Company to afford partial supply in certain events.

- (1) The period for which the authorised distributors are prepared to bind themselves to take energy:
- (2) The amount of energy required and the hours during which the Company can be called upon to supply such energy:
- (3) The capital expenditure in connection with the supply of such energy:
- (4) How far capital expended in connection with such supply may become unproductive to the Company upon the discontinuance of such supply.

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The provisions of the section of this Act of which the marginal note is “Maximum prices” shall not apply to any supply given under this section.

Penalty for
failure to
supply in
bulk.

46. Whenever the Company make default in supplying energy in bulk to any authorised distributor to whom they may be and are under this Act required to supply energy in bulk in accordance with the foregoing provisions of this Act they shall be liable in respect of each default to a penalty not exceeding ten pounds for each day on which the default occurs :

Provided that the penalties to be inflicted on the Company under this section shall not exceed in respect of any one default not being a wilful default on the part of the Company the sum of five hundred pounds And provided also that in no case shall any penalty be inflicted in respect of any default if the court are of opinion that the default was caused by inevitable accident or *damno fatali* or was of so slight and unimportant a character as not materially to affect the value of the supply.

Arbitration
as regards
supply.

47. The Company shall give a supply of energy to any person who requires a supply which may be given by this Act other than a supply in bulk upon that person entering into a binding agreement to take the energy upon such terms as failing agreement shall be fixed by a single arbiter appointed by the Board of Trade and in fixing such terms (including a minimum annual sum to be paid to the Company) the arbiter shall have regard to the following amongst other considerations :—

- (1) The period for which the person to whom the supply is to be given is prepared to bind himself to take energy ;
- (2) The amount of energy required and the hours during which the Company can be called upon to supply such energy ;
- (3) The capital expenditure in connection with the supply of such energy ; and
- (4) How far capital expended in connection with such supply may become unproductive to the Company upon the discontinuance of such supply.

Notice of dis-
continuance
of supply.

48. Any authorised distributor or person supplied with energy by the Company under this Act who is desirous of discontinuing to receive such supply shall give to the Company twelve months' notice in writing of his intention to discontinue to receive such supply Such notice may be given so as to expire at the end of the period for which the distributor or person has contracted

to continue to receive and pay for such supply or at any subsequent date. A.D. 1903.

49. Subject to the provisions of this Act the Company on the one hand and any person on the other hand may enter into and carry into effect contracts agreements or arrangements for or with respect to the supply by the Company to such person of energy at such price and on such terms and conditions as may be agreed and the Company may supply such energy accordingly. Agreements
for supply of
energy.

50. The maximum power with which any such authorised distributor or person shall be entitled to be supplied shall be of such amount as he may demand to be supplied with not exceeding what may be reasonably anticipated as the maximum consumption. Maximum
power.

If any difference arises between any such authorised distributor or person and the Company as to what may be reasonably anticipated as the consumption of such authorised distributor or person such difference shall be determined by a single arbiter to be appointed by the Board of Trade.

51.—(1) Any electric lines laid down in any street by the Company under this Act shall be laid in such line or route and in a trench of such dimensions and in such position as may be agreed between the Company and the local authority or as failing agreement shall be settled by the Board of Trade And the Company shall show on the plan of the works to be served on such local authority in accordance with the provisions of the Electric Lighting (Clauses) Act 1899 incorporated with this Act the route proposed to be taken and the dimensions and position of the proposed trench. As to route.

Where the local authority of any burgh or urban district object to any proposed line or route on the ground that it would traverse the principal thoroughfares or busy streets of such burgh or district and indicates an alternative route or deviation which in the opinion of the Board of Trade is reasonably practicable and does not involve undue increase of expenditure such alternative route or deviation shall be adopted Provided further that nothing in this section shall take away or prejudicially affect the right of the Postmaster-General under section 14 of the Schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of that section shall apply in respect of any alternative route or deviation as though it were the route originally proposed by the Company.

(2) The reasonable and proper costs charges and expenses incurred by any local authority in relation to any reference to the Board of Trade under this section shall unless the Board of Trade

A.D. 1903. — shall certify that the action of the local authority in the matter has been unreasonable be paid by the Company.

Appointment
of electric
inspectors.

52.—(1) The Board of Trade may on the application of the Company or of any authorised distributor or person to whom the Company is supplying energy under this Act appoint and keep appointed one or more competent and impartial person or persons to be an electric inspector or electric inspectors under this Act and the Board of Trade may prescribe the fees to be taken by any such inspector and these fees shall be accounted for and applied as may be directed by the Board of Trade.

(2) The Company shall whenever reasonably required by any local authority through whose district any trunk main is laid test and furnish a record of the testing of the portion of main within their district and in case the Company fail to comply with the provisions of this subsection any such local authority may apply to the Board of Trade to appoint an inspector for the purpose of testing such main and the foregoing provisions of this section shall apply to the appointment of such inspector and the Company shall pay the cost of such testing.

PRICES AND DIVIDENDS.

Maximum
prices.

53. The prices to be charged by the Company for energy supplied by them shall not exceed those stated in that behalf in the Second Schedule hereto.

Relation
between price
and dividend.

54.—(1) Except as hereinafter provided the dividend payable by the Company on the capital of the Company in any year shall not exceed eight pounds in respect of every hundred pounds paid up of such capital and that rate of dividend is hereinafter referred to as “the standard rate of dividend.”

(2) If in any year the average price per unit obtained by the Company for energy supplied by them throughout their district is less than two pence and one half-penny per unit (hereinafter referred to as “the standard price”) the dividend which the Company is authorised to pay in that year may be increased in the ratio of four shillings per centum in respect of every one-and-a-quarter per centum by which the average price charged by the Company has been below the standard price.

(3) If in any year the average price per unit obtained by the Company for energy supplied by them throughout their district is more than the standard price the dividend which the Company is authorised to pay in that year shall be reduced below the standard rate of dividend in the ratio of four shillings per centum for

every one-and-a-quarter per centum by which the average price so obtained by the Company has been above the standard price. A.D. 1903.

(4) The Company may in addition to the dividends authorised under this Act make good any deficiency in any previous dividends which have fallen below the standard rate of dividend.

(5) The Company shall not in any case be entitled to charge for energy supplied under this Act any higher price than the maximum prices stated in this Act.

55.—(1) The Board of Trade at any time after the expiration of a period of ten years from the passing of this Act on the application of the Company or of any three or more authorised distributors to whom energy is supplied by the Company in bulk under this Act or of any twenty persons to whom energy is otherwise supplied by the Company under this Act may revise the maximum prices contained in the Second Schedule to this Act and the relation between price and dividend as fixed by this Act and also the standard price as so fixed. Revision of prices.

(2) The Board of Trade may if they think fit on the like application make a similar revision at the expiration of a period of ten years from the date at which the last such revision has taken place.

(3) On any such revision being so made the Board of Trade may modify the provisions of this Act both as to price and the relations between price and dividend so far as may be necessary to carry out their decisions on the revision.

PROTECTIVE PROVISIONS.

56. For the protection of the county council of any county or the district committee of any district within the area of supply (in this section called “the county authority”) and of the roads streets and bridges sewers pipes waterworks channels conduits and other property vested in or under the jurisdiction of the county authority the following provisions shall notwithstanding anything contained in this Act or in the Acts incorporated herewith have effect unless otherwise agreed on between the county authority and the Company :— For protection of county authorities.

(1) Nothing in this Act contained or incorporated herewith shall take away or abridge any power vested or to be vested in the county authority to construct build lay repair maintain open or break up alter enlarge improve divert relay or reconstruct any road street bridge or any sewer drain pipe

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channel conduit or water or other works or any other powers of the county authority :

(2) Before commencing any work other than that of repairing the surface of any road street or bridge (of which repairs no notice shall be required) whereby any pipe wire cable electric line box or other apparatus of the Company may be interfered with the county authority shall (except in cases of emergency in which cases notice shall be given thereafter as soon as may be) give the Company notice of their intention to commence such work specifying the time at which the commencement will be made such notice to be given fourteen days at least before the commencement of the work Provided that in case of the construction of a new or the reconstruction rebuilding or widening of an existing road street or bridge one month's notice shall be given :

(3) In the event of the county authority executing any work as aforesaid involving interference with any pipe wire cable electric line box or other apparatus of the Company the Company shall subject to the provisions of the next following subsection in addition to giving effect to any other provisions contained in this Act for the protection of roads streets and bridges and works therein within twenty-eight days from the despatch of a notice by the county authority cut off the electric current from and at their own cost alter relay or where necessary remove temporarily or permanently as they may be required such pipe wire cable electric line box apparatus or other property to suit the new or changed conditions And in the event of the Company failing within fourteen days to proceed to comply with the requirements of such notice or failing to carry out the same with all proper despatch the county authority shall be entitled to carry out the work themselves in such manner as they shall consider expedient and to recover the cost thereof from the Company but in either case the county authority shall at the Company's expense afford the Company reasonable temporary facilities for continuing the use of their mains and other property during the execution of any such works as aforesaid and all reasonable facilities for relaying or replacing the same or others substituted therefor :

(4) When any road street or bridge in which the pipes wires cables electric lines boxes or other apparatus or property

of the Company shall be laid is to be opened up by the county authority or by any contractor or surveyor or superintendent acting under their authority the Company upon receiving three clear days' notice thereof at their head office or in cases of emergency such shorter notice as may be practicable shall at their own expense send to the place specified in the said notice a competent workman or superintendent or other qualified person to point out the position and level of the Company's pipes wires cables electric lines boxes or other works and give such information as may be desired by the county authority to enable the work of the county authority or persons aforesaid to be carried out expeditiously and in safety and all such operations shall be executed at the cost of the county authority with reasonable expedition and so as to cause as little damage or inconvenience to the Company as possible :

- (5) The county authority shall not be liable for any damage which the Company or those supplied by them may sustain through the acts of such authority in constructing reconstructing improving enlarging repairing or maintaining any road street or bridge sewer drain pipe channel conduit or water or other works or through the reasonable use of steam rollers or the reasonable exercise of any rights functions powers or privileges vested or to be vested in such authority or through the flooding of the mains or property of the Company but the provisions of this subsection shall not apply in any case where such damage results from the want of reasonable care on the part of the county authority :
- (6) Before the Company shall interfere with any of the roads streets or bridges sewers pipes waterworks channels and conduits or other property which are or may be under the jurisdiction of or vested in the county authority the Company shall apply in writing to the county authority for their consent to the proposed works and shall submit along with such application such plans as are prescribed by section 14 of the Schedule to the Electric Lighting (Clauses) Act 1899 or any other provisions in the general Acts incorporated herewith showing the position of their proposed works and the manner in which such proposed works are to be executed and no such works shall be commenced by the Company without the consent of the county authority but such consent shall not be unreasonably withheld or delayed

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The determination of the county authority on any application by the Company for their consent shall be intimated to the Company within one month from the date of receipt of such application and in the event of no intimation having been given before the expiry of the said month the county authority shall be deemed to have consented and in the event of any refusal the reasonableness or unreasonableness of such refusal shall be determined in manner hereinafter provided in this section. The county authority shall be entitled to require as a condition of their giving such consent that the Company shall comply with such reasonable regulations as the county authority may and are hereby authorised to make in regard to the position and level in which the Company's pipes wires cables or electric lines shall be laid the convenience of the traffic and the protection of any works or property of the county authority the position and level of the street or switch boxes and other apparatus of the Company the protection of such street or switch boxes and the prevention of accumulation of gas therein and as to the dates and hours for opening and examining the same and the method of carrying out the proposed works and the method of restoring and maintaining such roads and streets for the period after mentioned. All works of the Company so far as laid on or under any road street or public way shall be constructed of such strength as shall be fitted to support the weight of the heaviest traffic without injury and the Company shall not be entitled to discharge or emit from any part of their works any water steam or other matter or thing so as to cause danger or avoidable annoyance to traffic. No overhead wires along across or by the side of any of the roads streets or bridges shall be permitted without the consent of the county authority to be given or withheld at their absolute discretion and where such consent is given the county authority may attach thereto such conditions as may be prescribed in any regulations to be made by them or such other or further conditions as they may consider expedient in the special circumstances of any case. The provisions of this subsection shall not apply to repairs renewals or amendments of works of the Company of which the character dimensions and position remain unaltered :

- (7) Before the Company shall commence any work for which the consent of the county authority has been obtained or any repair renewal or amendment such that consent is not

required the Company shall (except in cases of emergency in which cases notice shall be given thereafter as soon as may be) give the county authority notice of their intention to commence such work specifying the time at which the commencement will be made which notice shall be given five days at least before the commencement of the work and the Company shall execute the same under the superintendence of a qualified person appointed by and responsible to the county authority who shall have power to prescribe his duties and whose remuneration so far as the same may be incurred in respect of construction shall be repaid to them by the Company and the Company shall always complete such work with all reasonable expedition and cause as little damage or inconvenience as circumstances admit. If any diversion of pipes of the county authority is at any time rendered necessary by reason of the Company's operations new pipes with all proper valves scour drains and other apparatus shall at the expense of the Company be provided laid fitted and jointed at the sight and to the satisfaction of the county authority before the existing pipes and other apparatus are interfered with :

- (8) The Company shall make full compensation to the county authority for all loss or damage which may occur to the roads streets bridges sewers drains mains pipes apparatus or other property of the county authority owing to or arising from the exercise or user of any powers by this Act conferred upon the Company including damage arising from electricity escaping from the mains or other works of the Company and shall indemnify the county authority from all liability in respect of loss or damage due to or arising from the exercise or user by the Company of the powers by this Act conferred upon them :
- (9) The Company shall free of charge supply to the county council of each county and to the district committee of each district respectively within the area of supply one copy of the map and section to be made as mentioned in section 60 of the Schedule to the Electric Lighting (Clauses) Act 1899 so far as the same relate to the county or district under such authority's jurisdiction and shall once in every year cause the said copies to be duly corrected to date :
- (10) In the event of the abandonment by the Company of any portion of the works by this Act authorised subsequent to the construction or partial construction thereof the Company

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shall if required by notice in writing from the county authority forthwith remove the pipes wires cables electric lines boxes and other apparatus and property so abandoned then being in under over upon along or across the roads streets or bridges of the county authority and reinstate the roads streets and bridges and any pipes sewers or works therein affected by the operations of the Company to the reasonable satisfaction of the county authority and if the Company shall for three months neglect or delay so to do the county authority may themselves remove the works of the Company and reinstate such roads streets bridges and any pipes sewers or works therein and recover the cost of so doing from the Company and the county authority may sell the works removed and apply the proceeds in reimbursement of their costs and outlays which shall be a first and preferable charge thereon :

- (11) If any difference shall arise between the Company and the county authority as to the reasonableness or unreasonableness of any notice or request or any other matter in dispute the same shall be settled by an arbiter to be mutually appointed or failing such appointment by an engineer or other person to be appointed by the Board of Trade on the application of either party and the whole reasonable expenses incurred by the county authority in relation to any arbitration or reference under this section shall be paid by the Company except in the event of the arbiter certifying that the county authority has been unreasonable in which case the expenses of the arbitration or reference (including the expenses of the parties) shall be borne and paid as the arbiter may direct.

For protection of burghs of Buckhaven Methil and Innerleven Dunfermline and Cupar.

57. The provisions of the section of this Act whereof the marginal note is "For protection of county authorities" shall *mutatis mutandis* extend and apply for the protection of the provost magistrates and councillors of the burghs of Buckhaven Methil and Innerleven Dunfermline and Cupar in addition to all other provisions contained in this Act for the protection of such burghs and in construing the said section the expression "the county authority" shall for the purposes of this section mean the provost magistrates and councillors of the said respective burghs and the provisions of the said section shall also be applicable to the sewers pipes and works (if any) of such provost magistrates and councillors situated without the respective burgh boundaries.

58. The provisions of the section of this Act whereof the marginal note is "For protection of county authorities" shall *mutatis mutandis* extend and apply to and enure for the benefit and protection of the Kirkcaldy District Committee of the county Council of the county of Fife and the provost magistrates and councillors of the burgh of Buckhaven Methil and Innerleven in respect of their joint waterworks undertaking as regards the combined special water supply districts of Wemyss and of Buckhaven Methil and Innerleven in addition to all other provisions contained in this Act for the benefit and protection of those bodies and in construing the said section the expression "the county authority" shall for the purposes of this section mean the said bodies mentioned in this section and the provisions of the said section shall be applicable to the water mains pipes fittings apparatus and property belonging to such bodies respectively.

For protection of Wemyss & Co. Joint Waterworks Undertaking.

59. Notwithstanding anything in this Act contained none of the powers of this Act shall apply to or be exercised or exercisable within the municipal burgh of Kirkcaldy unless with the consent of the provost magistrates and councillors of that burgh under the common seal of the burgh but the Company shall be at liberty to lay within the burgh mains pipes cables wires inspection boxes and other similar necessary apparatus for the purpose of supplying places beyond and the provisions of the section of this Act whereof the marginal note is "For protection of county authorities" shall apply to the laying down of such mains pipes cables wires inspection boxes and other similar necessary apparatus.

For protection of burgh of Kirkcaldy.

60. The following provisions for the protection and benefit of the waterworks commissioners of Kirkcaldy and Dysart (hereinafter called "the commissioners") shall have effect (that is to say) :—

For protection of Kirkcaldy and Dysart Waterworks Commissioners.

- (1) All additional reasonable expenditure at any time after the commencement of this Act incurred by the commissioners in consequence of the construction or laying down or by reason of the existence of any pipes wires cables electric lines boxes or other apparatus or property of the Company in any road street or bridge which but for the passing of this Act and the powers thereby conferred upon the Company would not otherwise have arisen shall be borne and paid by the Company :
- (2) The provisions of the section of this Act whereof the marginal note is "For protection of county authorities" shall *mutatis mutandis* extend and apply to and enure for the

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benefit and protection of the commissioners in respect of their waterworks undertaking in addition to all other provisions contained in this Act for the benefit and protection of the commissioners and in construing the said section the expression "the county authority" shall for the purposes of this section mean the commissioners and the provisions of the said section shall be applicable to the water mains pipes fittings apparatus and property belonging to the commissioners Provided that subsection (11) of the said section shall not apply to subsection (1) of this section.

For protection of mineral owners within area of supply.

61. In addition to any other provisions contained in this Act or in the Electric Lighting Acts so far as incorporated with this Act the following provisions shall have effect for the protection and benefit of mines and minerals and of the owners lessees and occupiers thereof and of their successors lessees and assignees (who are in this section together referred to as "the coal owners") (that is to say) :—

The coal owners shall not be liable for or be bound to make good any loss or damage which may be occasioned to the Company or to any lands buildings electric cables lines or works of the Company by the working of the mines and minerals within the area of supply now owned leased or worked or which may hereafter be owned leased or worked or acquired by the coal owners respectively in such manner as to let down or otherwise disturb the surface or any works buildings or property of the Company thereon or thereunder and nothing in this Act contained shall relieve the Company from liability for any damage or injury done or occasioned to any mines minerals or workings or property of the coal owners respectively by reason or in consequence of any of the works or operations or by the user of the powers of the Company.

For protection of Kirkcaldy Gas Light Company Limited.

62. The following provisions for the protection of the Kirkcaldy Gas Light Company Limited shall in addition to any other provisions as to conduits main carriers sewers drains or water pipes contained in any Act incorporated with this Act unless otherwise agreed between the said Kirkcaldy Gas Light Company and the Company be observed and have effect (that is to say) :—

The Company shall make full compensation to the said Kirkcaldy Gas Light Company Limited for any loss or damage which may occur to their mains pipes and apparatus caused by the exercise of any of the powers by this Act conferred upon the Company.

SUPPLEMENTAL.

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63. The Company and the proprietors or trustees of any navigation or any other company or person may enter into and carry into effect contracts agreements and arrangements for and with respect to the supply of water to the Company for condensing and other purposes of their undertaking by any such proprietors trustees company or person.

Agreements with regard to supply of water.

64. Notwithstanding anything contained in this Act any cables pipes or wires to be laid or placed by the Company under or across any tidal water shall be laid or placed at such depth under or such height over the tidal water as the Board of Trade may require.

Cables pipes &c. under or across tidal water to be laid with approval of Board of Trade.

65. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Works below high water mark not to be commenced without consent of Board of Trade.

66. Nothing contained in this Act shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any right in respect thereof belonging to the King's most excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such commissioners and such board are hereby respectively authorised to give) neither shall anything in this Act contained

Saving rights of Crown in foreshore.

A.D. 1903. — extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Power to pay
interest out
of capital
during con-
struction.

67. Notwithstanding anything in this Act or in any Act or Acts incorporated therewith contained it shall be lawful for the Company out of any money by this Act authorised to be raised to pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him from the respective times of such payments until the expiration of four years from the commencement of this Act or such less period as the directors may determine but subject always to the conditions hereinafter stated (that is to say):—

- (A) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the Company that one fifth of the share capital authorised by this Act has been actually issued and accepted and is held by shareholders who or whose executors administrators or assignees are legally liable for the same :
- (B) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear :
- (C) The aggregate amount to be so paid for interest shall not exceed fifteen thousand pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one third of the amount paid for interest as aforesaid :
- (D) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares and in every certificate of shares :
- (E) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as hereinbefore set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this Act or any other Order or Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced

by him beyond the amount of calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845. A.D. 1903.

68. If within two years from the date of the passing of this Act the Company have not substantially commenced their works for the purpose of carrying out their powers under this Act and if within four years after the date of the passing of this Act the Company have not erected a generating station or generating stations sufficient in the opinion of the Board of Trade and are not in a position to supply therefrom the Board of Trade may order that the powers of the Company under this Act shall cease as to the whole or any portion of the area of supply and on any such order being made these powers shall cease accordingly. Cesser of powers in case of works not being completed.

69.—(1) The Company may by agreement (but not otherwise) acquire from any local authority or other undertakers to whom a Provisional Order under the Electric Lighting Acts 1882 and 1888 shall have been granted relating to a district or place within the Company's area of supply the undertaking authorised by such Provisional Order and any such undertakers to whom a Provisional Order has prior to the date of the passing of this Act been granted (whether such Order has been confirmed before or shall be confirmed after such date) may with the approval of the Board of Trade transfer their undertaking to the Company on such terms and conditions as may be agreed upon and in the event of the Company so acquiring such undertaking they shall be deemed to be the undertakers for all the purposes of the Provisional Order so acquired by them and the provisions of such Provisional Order shall apply to the supply of electricity by the Company within the area of supply as defined by such Order. Provided that— Transfer of undertakings of local authorities and others to Company.

(A) In the case of any Provisional Order granted prior to the year one thousand nine hundred to any local authority the provisions of the Electric Lighting (Clauses) Act 1899 shall from and after such transfer be deemed to have been incorporated with such Provisional Order and shall control and supersede such of the provisions of that Order as are at variance or inconsistent therewith; and

(B) None of the provisions of any Provisional Order so acquired by the Company or of the Electric Lighting Acts 1882 and 1888 shall extend to authorise the purchase by any local authority of any generating station or other works of the Company used or required for the purposes of supplying any other portions of the Company's area of supply.

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(2) Any capital moneys received by any local authority in respect of any transfer under this section shall be applied by such authority in manner provided by subsection (2) of section 7 of the Schedule to the Electric Lighting (Clauses) Act 1899.

Provisions as
to general
Acts.

70. Nothing in this Act shall exempt the Company or their undertaking from the provisions of or deprive the Company of the benefits of any general Act relating to electricity or to the supply of or price to be charged for energy which may be passed after the commencement of this Act.

Costs of Act.

71. All costs charges expenses and liabilities of and preliminary to and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be borne and paid by the Company.

The SCHEDULES referred to in the foregoing Act.

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THE FIRST SCHEDULE.

LANDS FOR GENERATING OR POWER STATIONS.

COMRIE SITE.—Situated partly in the parish of Culross partly in the parish of Carnock and county of Fife It comprises the lot or portion of land $9\frac{1}{2}$ acres or thereby in extent forming No. 534 and part of No. 535 on the 25-inch Ordnance Survey sheets Nos. XXXIII. 13 and 14 first edition 1896 It is bounded on the east by the Blair Burn on the south by Lot No. 5 on said Ordnance Survey sheets on the west by the private road forming part of the area marked 535 on said Ordnance Survey sheet No. XXXIII. 13 on the north by Lot No. 538 and on the north-east by the North British Railway Kinneddar Branch on the last-mentioned Ordnance Survey sheet.

COWDENBEATH SITE.—Situated in the parish of Auchtertool in the same county It comprises the lot or portion of land $7\frac{1}{2}$ acres or thereby in extent forming No. 222 on the 25-inch Ordnance map sheet No. XXXIV. 12 first edition 1896 It is bounded on the north-east by the main road known as Bridge Street on the south-east by the mineral line leading from the North British Railway (Dunfermline and Thornton section) to the colliery of the Lochgelly Coal and Iron Company on the north-west partly by the said Dunfermline and Thornton section of the North British Railway and by the Lochgelly Burn.

CUPAR SITE.—Situated in the parish of Cupar and partly within the parliamentary and municipal and police burgh boundary of Cupar in the same county It comprises the lot or portion of land $13\frac{1}{2}$ acres or thereby in extent forming No. 277 on the 25-inch Ordnance map sheet XIII. 4 first edition 1895 It is bounded on the north by the Mill Lead leading under the North British Railway aftermentioned from Cupar Mills to the River Eden on the east by the River Eden on the south-west by the Lot No. 278 on the said Ordnance map on the north-west by the embankment of the North British Railway main line from Thornton Junction to Cupar.

MARKINCH SITE.—Situated in the parish of Markinch in the same county It comprises the lots or portions of land $4\frac{3}{4}$ acres or thereby in extent forming Nos. 309 and 324 on the 25-inch Ordnance map sheet No. XXVIII. 1 first edition 1895 It is bounded on the south by the tail-race from Balbirnie Paper Mills to the River Leven by the said River Leven and by the lot or subject No. 323 on the said Ordnance sheet on the south-east by the embankment of the Leslie Branch of the North British Railway on the north and north-west by Lot No. 258 on the said Ordnance sheet and on the north-east by the public road from Balbirnie to the bridge underneath the said Leslie Branch line of the North British Railway.

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LEVEN SITE.—Situating in the parish of Scoonie in the same county It comprises parts of the lots or subjects Nos. 432 and 431 on the 25-inch Ordnance map sheet No. XXVIII. 4 first edition 1895 and is 15 acres or thereby in extent It is bounded on the west by Lot No. 424 on the north partly by the embankment of the Leven and East of Fife section of the North British Railway and partly by the Leven Creosoting Works on the east partly by the said Leven Creosoting Works and partly by Lot No. 441 on the said Ordnance sheet on the south partly by the Lot No. 443 on the said Ordnance sheet and partly by the public road leading from Kirkland to Leven.

THE SECOND SCHEDULE.

In this Schedule—

The expression “unit” shall mean the energy contained in a current of one thousand amperes flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Company charges any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter :—

- (A) For any quantity not exceeding the equivalent of four hundred hours of supply at the maximum power which has been demanded by him at the rate of threepence per unit :
- (B) For any further quantity exceeding the equivalent of four hundred hours of supply at such maximum power at the rate of twopence per unit.

SECTION 2.

Where the Company charges any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this Schedule the amount of energy supplied to him being taken to be the product of such electrical quantity and the declared pressure of the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Company under any regulations made under this Act.

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